



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

April 14, 2025

### **POLICE COMMISSIONER'S PENALTY DEPARTMENTURE**

**Re:** CCRB Case No. 202309830 (Incident Date: October 18, 2023) regarding Sergeant William McKnight, Tax No. 955171 (PODS Case No. C-033584), and Police Officer Diane Hopkins, Tax No. 952861 (PODS Case No. C-033582)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendations of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matters involving Sergeant William McKnight and Police Officer Diane Hopkins and has determined that their actions do not warrant disciplinary action.

In this matter, Sergeant McKnight was off-duty and did not take any steps that would invoke his police authority toward the complainant. Therefore, it has been determined CCRB lacks jurisdiction over this complaint. Sergeant McKnight was attempting to park his vehicle prior to starting work. As Sergeant McKnight was attempting to park, the complainant, on a Citi-Bike, quickly drove behind Sergeant McKnight blocking him from parking his personal vehicle. Sergeant McKnight was attempting to park his vehicle prior to the start of his tour. Sergeant McKnight honked the horn on his vehicle to get the complainant to move, to no avail. Sergeant McKnight exits his vehicle and calmly asked the complainant to move and allow him to park. When Sergeant McKnight realized the complainant would not move, he requested the desk officer to send on-duty officers to assist. The statements Sergeant McKnight made to the complainant were not related to his official duties and were made as a private citizen, dealing with an individual blocking him from parking prior to starting work. It should be noted throughout this encounter, Sergeant McKnight remained calm and courteous, while dealing with an individual attempting to create a hostile encounter. To issue discipline would not be in the interest of justice.

Furthermore, after reviewing the totality of the circumstances, it has been determined that Police Officer Hopkins' actions were de minimis in time and scope, non-injurious, and a reasonable use of force based on Patrol Guide Procedure No. 221-01 (Force Guidelines). In all circumstances, any application or use of force must be reasonable under the circumstances. Police Officer Hopkins actions complied with the Department's force guidelines, as she was attempting to move the complainant who was acting unlawfully, by blocking Sergeant McKnight from parking. Police Officer Hopkins had the authority to move the complainant out of the way. The actions of Police

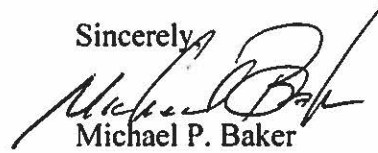
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Officer Hopkins were reasonable, and did not cause any harm to the complainant. To issue discipline would not be in the interests of justice.

Based on the foregoing, the Police Commissioner directs that Sergeant McKnight and Police Officer Hopkins receive no disciplinary action.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker", written over the word "Sincerely,".

Michael P. Baker  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office